

The Orissa Housing Board Rules, 1970

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State of Odisha - Act

The Orissa Housing Board Rules, 1970

ODISHA

India

The Orissa Housing Board Rules, 1970

Rule THE-ORISSA-HOUSING-BOARD-RULES-1970 of 1970

Published on 16 February 1970

Commenced on 16 February 1970

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The Orissa Housing Board Rules, 1970

Published vide Notification No. S.R.O. 66, dated 16th February, 1970

Notification No. S.R.O. 66, dated 16th February, 1970 - In exercise of the powers conferred by Sub-section (1) of Section 62 of the Orissa Housing Board Act, 1968 (Orissa Act 11 of 1968

), the State Government do hereby make the following rules, the same having been previously published as required by Subsection (1) of the said section, namely :

1.

Title and commencement.

(1)

These rules may be called the Orissa Housing Board Rules, 1970.

(2)

They extend to the whole of the State of Orissa.

(3)

They shall come into force at once.

2.

Definitions.

- In these rules, unless the context otherwise, requires-

(a)

"Act" means the Orissa Housing Board Act, 1968 (Orissa Act

11 of 1968

);

(b)

"debenture" means a security document issued by the Board for money borrowed by the Board;

(c)

"Form" means a form appended to these rules;

(d)

"Government" means the State Government of Orissa;

(e)

"Schedule" means a schedule appended to these rules;

(f)

"section" means a section of the Act ;

(g)

all other words and expressions used in these rules but not defined shall have the same meaning as has been respectively assigned to them in the Act.

3.

[Pay, remuneration, honorarium, allowances, leave etc., of the Chairman.

[Substituted vide SRO No. 226/20-3-1972.]

(1)

Subject to the provisions contained in Section 76, the Chairman shall be entitled to-

(a)

if he is an official, his grade, pay and other allowances admissible to him under the rules in force in the State for deputation of officers of his rank ; or if he is a retired Government employee, honorarium not exceeding [one thousand and five hundred rupees] per month as Government may specify in addition to his pensionary benefits on retirement; or if he is a non-official, holding office in an honorary capacity, compensatory allowance as the Government may specify in a notification from time to time;

(b)

travel by air or by the highest class on railways including air-conditioned class irrespective of the amount of pay or honorarium paid to him;

(c)

travelling allowance admissible to a Head of Department of Government for travel by road, air or by the highest class on railways including air-conditioned class. For travel by air-conditioned class, the additional fare that he can draw shall be reduced to such amount per kilometre as in the case of Senior Officers of Government entitled to travel in air-conditioned class.

(2)

(a)

If the Chairman is a retired Government employee he shall be entitled to such leave term as are admissible to temporary Government employees.

(b)

If the Chairman is a Government employee, the leave terms contained in the Orissa Leave Rules, 1966 shall be applicable to him.

(3)

Notwithstanding anything contained in these rules where the Chairman holds office in an honorary capacity he shall receive such concessions as the Government may in each case specify in this behalf.]

4.

Allowances to members.

- Every member of the Board other than the Chairman shall be entitled to-

(a)

if he is a non-official (including an M.L.A.), such travelling allowance and daily allowance as are admissible to non-official members according to the procedure laid down in Finance Department Resolution No. 18937-F., dated the 6th August, 1955, as amended from time to time;

(b)

if he is an M.L.A. during the period of Assembly Session travelling allowance and daily allowance at such rates as are applicable to him as M.L.A. :

Provided that he does not draw T.A. from the Assembly establishment for the same period;

(c)

if he is an official member travelling allowance and daily allowance as may be admissible to him under the rules governing him :

Provided that such official member shall not draw travelling allowance or daily allowance from the Board if for the same journey or for the same halt he has drawn travelling allowance or daily allowance from Government Treasury in another capacity;

(d)

[if he is a non-official (including an M. L. A.), sitting fee of rupees [two hundred]

[Inserted vide Orissa Gazette Extraordinary No. 1061/3-8-1985.]

only per day in lieu of daily allowance in respect of each of the meeting of the Board or the committee attended by him ; provided that if he is an M.L.A. sitting fee under this clause shall not be admissible to him during the session of the Assembly;

Provided further that one sitting fee shall be admissible for two or more meetings held during the course of a day.]

5.

Salary and other conditions of the service of officers and staff.

(1)

The persons in service of the Government who are deputed to the Board shall get their grade pay and other allowances admissible to them under the rules in force in Orissa for deputation of such persons.

(2)

Persons appointed by the Board to the posts for its own office and subordinate offices, as far as practicable, be allowed to draw such scales of pay and allowances as are admissible in respect of comparable posts in the offices of the Heads of Departments and its subordinate offices.

(3)

The service rules in regard to age-limit, leave, allowances, discipline, [conduct and retirement benefits including pension]

[Substituted vide Orissa Gazette Extraordinary No. 229/1990.]

[and seniority]

[Inserted vide SRO No. 468/24-5-1973.]

applicable from time to time to the Government employees shall apply to the officers and employees of the Board.

(4)

The Board shall, having due regard to the efficiency, have power to give higher starting pay to any of its officers or employees and relax the age-limit in respect of direct recruits with the prior approval of the Government.

6.

Committees appointed by the Board.

(1)

The Board may appoint from among its members such committees as it may consider necessary.

(2)

The number of members of any committee shall not exceed five.

(3)

Every meeting of a committee shall be presided over by the Chairman if he is a member of the committee and is present and in his absence by any member chosen by the members present at the meeting to preside for the occasion. If the Chairman is not a member of any committee, the committee shall elect its Chairman.

(4)

The quorum for a meeting of a committee shall be one-half of the total number of members of the committee and no quorum shall be necessary for an adjourned meeting.

(5)

No meeting of the committee shall be held unless notice of the meeting has been given at least two clear days before the day of the meeting.

(6)

All questions, which may come up before the committee, shall be decided by a majority of the members present and voting at the meeting,

(7)

In every case of equality of votes, which shall be by the show of hands, the Chairman, or the presiding member shall have and may exercise a second or casting vote.

(8)

The committee may co-opt, other persons; but the number of such persons shall not exceed one-third of the total number of the committee:

Provided that the persons so co-opted shall not be entitled to vote.

7.

Execution of contracts.

(1)

Every contract for the execution of any work or the supply of any materials or goods which involves expenditure exceeding one thousand rupees shall be in writing and be affixed with the common seal of the Board.

(2)

For the execution of works or the supply of any materials or goods by or on behalf of or in favour of the Board, the rules and forms prescribed by the Orissa Public Works Department in respect of tender and contracts shall, as far as practicable be followed :

Provided that the Board shall have power to make additional conditions in the forms of contract if the Board desires to do so.

8.

Preparation and submission of Annual Housing Programme, Housing Scheme, Budget and Establishment Schedule.

(1)

The Annual Housing Programme shall be prepared in Form I.

(2)

The Budget for the next year shall be prepared in Form II; and

(3)

The schedule of the staff of officers and employees already employed and to be employed during the next year shall be prepared in Forms III-A and III-B, respectively.

9.

Notice to persons liable for betterment charges.

(1)

Notice to persons liable for betterment charges under Sub-section (1) of Section 35 of the Act shall be given in Form No. IV.

(2)

For the purpose of Form No. IV prescribed under Sub-rule (1) the Housing Commissioner shall, by notification in the Official Gazette, specify in respect of any scheme-

(a)

the date immediately preceding the execution of such scheme; and

(b)

the date of completion of execution of the scheme.

10.

Payment of betterment charges.

(1)

Any person liable to pay betterment charges in respect of his/her land which has been subjected to such levy, may, at his/her option, pay the betterment charges in monthly instalments after entering into an agreement with the Board, subject to the following conditions, namely :

(i)

the entire amount shall be paid in such number of monthly instalments, which shall not be more than twenty-four as may be determined by the Board;

(ii)

the monthly instalments together with simple interest at six per cent per annum on the outstanding amount on the first of the month, for which the instalment is due, shall be paid within the fifth day of the month;

(iii)

in case of default, compound interest shall be charged at six per cent per annum on the amount that remains unpaid on the date of default; and

(iv)

in case of default for three successive months the agreement shall be annulled and the entire amount with interest due, be recovered in accordance with the law in force.

11.

Disposal of property.

(1)

Any land vesting in the Board may, with the previous concurrence of the Government be transferred by the Board to the Government ; and when such transfer is made, the loan advanced by Government to the Board shall be reduced to the extent of the purchase value of the land so transferred plus the charges incurred on the establishment for its maintenance and on its development, if any.

(2)

Any building vesting in the Board may, with the previous concurrence of the Government, be transferred by the Board to Government; and when such transfer is made, the loans advanced by Government to the Board shall be reduced to the extent of the cost of the building so transferred plus the charges incurred on the establishment for its maintenance but less a reasonable amount to be deducted on account of depreciation.

(3)

The Board may lease out, sell or otherwise dispose of any land building or other property vesting in it into such terms and conditions governing the Housing Scheme concerned or as may be determined by the Board in each particular case :

Provided that where the value of the land, or building or other property exceeds Rs. 25,000 the prior approval of the Government shall be taken.

12.

Forms of notices for eviction, recovery of arrear rent, damage.

(1)

Notices under-

(i)

Sub-section (1) of Section 45 shall be in Form V;

(ii)

Sub-section (1) of Section 46 shall be in Form VI ; and

(iii)

Sub-section (2) of Section 46 shall be in Form VII.

(2)

In addition to the modes of service of notices prescribed by Sections 45 and 46 of the Act any such notice may also be served by any employee of the Board by delivering or tendering it to the person to whom it is addressed.

13.

Procedure for taking possession.

(1)

For the purpose of taking possession of the premises under Section 45 (2), the competent authority or any officer or employee empowered by him in this behalf may enter into the premises at any time except before sunrise or after sunset.

(2)

The competent authority or any officer or employee empowered by him in this behalf may, for the purpose of entry under Sub-rule (1) break open any lock and take possession of any articles found in the premises in the presence of witnesses, if the person concerned refuses to take possession of such articles.

(3)

When the articles are taken possession of under Sub-rule (2) a notice shall be issued to the occupant to receive the said articles after paying such custody charges as the competent authority may fix in each case.

(4)

If the person to whom a notice is issued under Sub-rule (3) fails to take possession, the competent authority may sell the articles by public auction and hold the proceeds thereof in deposit at the credit of the person concerned.

14.

Assessment of damages for unauthorised occupation.

(1)

In assessing damages for unauthorised occupation of any premises belonging to the Board, the competent authority shall take into consideration the following matters namely :

(i)

the purpose and the period for which the Board premises were in unauthorised occupation;

(ii)

the nature, size and standard of the accommodation available on such premises;

(iii)

the rent that would have been realised, if the premises had been let out for the period of unauthorised occupation,

(iv)

any damage done to the premises during the period of unauthorised occupation;

(v)

any other matter which, in the opinion of the competent authority, is relevant for the purpose of assessing the damages.

(2)

Before assessing the damages the competent authority shall give the person in unauthorised occupation an opportunity of being heard.

15.

Borrowing of sums by issue of debenture.

(a)

Borrowing sums by the Board - (i) The Board may, with the previous sanction of the Government, borrow moneys by issuing debenture for the purpose of the Act.

(ii)

The total amount of debentures to be issued, issue price, form of debenture and the date of maturity shall be determined by the Board from time to time with the prior approval of Government.

(iii)

The rate of interest shall be such as may be fixed from time to time by the Government.

(iv)

A sinking fund shall be constituted for redemption of the debentures.

(v)

These debentures shall be negotiable by endorsement and delivery.

(b)

Reservation of debentures - (i) The Board may, with the sanction of the Government reserve the debenture bonds for issuing to any particular Bank or banker.

(ii)

Brokerage at such rate, as may be fixed by the Board subject to previous sanction of Government from time to time,

shall be paid to Banks, brokers and authorised agents on their application and also on applications received through them, bearing their seal, provided the total subscription received from them is not less than such sum as may be determined by the Board.

(iii)

Under-writing commission at such rates as may be determined by the Board subject to previous sanction of Government shall be paid to brokers and bankers who invest a sum of not less than the minimum amount that may be fixed by the Board.

(c)

Application - Applications for the issue of debentures shall be made to the Board in Form No. VIII.

(d)

Subscriptions - (i) Subscriptions to the debentures may be made by cheques or demand drafts drawn in favour of the Chairman of the Board. In respect of cheques drawn on Banks other than State Bank of India, Bhubaneswar Branch, commission and collection charges as may be fixed by the Board shall be paid. The debentures be issued only after the subscriptions are fully realised.

(ii)

If the subscriptions exceed the total amount of the debentures to be issued, partial allotment may be made and the balance of sum paid at the time of application shall be refunded as soon as possible. No interest shall be paid on the amounts so refunded. The Board may reserve the right to retain the subscriptions received up to ten per cent in excess of the sum floated.

(e)

Value of debentures - The debentures shall be issued in denominations of Rs. 100, Rs. 500, Rs. 1,000, Rs. 5,000, Rs. 10,000, Rs. 25,000, Rs. 50,000 and Rs. 100,000.

(f)

Conditions subject to which debentures may be issued - (i) The interest in the debentures shall be paid half yearly. The interest is subject to the payment of income-tax.

(ii)

The debentures shall be redeemable at par on the dates noted therein and the holder shall have no claim upon the Board for the interest accruing after the expiry of the term.

(iii)

Debentures which by reason of damage sustained have become unfit for circulation, shall be replaced at the request of the holder on surrendering the damaged or defaced debentures; provided that the essential marks for genuineness and identity, such as, the number, the amount, the rate of interest, the date and signature of the Chairman and the member of the Board are still recognisable. Fresh debentures shall also be issued to replace lost or destroyed debentures when in the opinion of the Board the fact of destruction is proved beyond doubt. When such proof is not produced or when in case of damage the essential marks on the debenture are lost and no longer recognisable, or when the debenture has been lost or has been mislaid a new debenture may be issued only after the debenture which is alleged to be missing or unrecognisable, has been advertised by the claims and in the manner specified by the Board and is not claimed by any other person.

(iv)

The re-issue of a debenture shall be made for the same amount under the same number with the addition of the word "Renewed". A fee of rupee one shall be charged for every renewed debenture thus issued.

16.

Maintenance of accounts.

(1)

The Board shall adopt commercial system of accounting for preparation and maintenance of its accounts. As far as practicable, the accounting procedure followed by the Orissa Construction Corporation Ltd., shall be followed in the Housing Board.

(2)

The Board shall publish its Annual Statement of Receipts and Expenditures in the Orissa Gazette and shall make available copies of the said accounts for sale at such rates as it may fix from time to time.

17.

Reports, statistics and returns to be furnished by the Board.

(1)

The Board shall submit to the Government an annual report in the narrative form on the activities of the Board by the 15th July of the year following :

The report shall contain particulars on the matters, namely-

(i)

Programme of schemes for the year;

(ii)

schemes under execution;

(iii)

particulars' of properties acquired;

(iv)

number of houses built under various categories;

(v)

receipts;

(vi)

expenditure;

(vii)

step taken to secure adequate finance for formulating fresh scheme;

(viii)

research undertaken in the matter of securing materials at cheap cost;

(ix)

programme of schemes for the next year;

(x)

assets and liabilities;

(xi)

general remarks.

(2)

The Board shall submit to Government the following statistics and returns :

(i)

a half-yearly report for the period ending on the 30th September and 31st March respectively in Form IX showing the progress of works under execution to reach the Government within sixty days from the close of the half-year to which the report relates;

(ii)

a half-yearly report for the period ending on the 30th September and the 31st March respectively in Form X showing the collection of rents and instalments in respect of the houses built by the Board to reach the Government within sixty days from the close of the half-year to which the report relates;

(iii)

minutes of each meeting of the Board as soon as they are confirmed by the Board.

18.

Supersession of the Board.

(1)

Before an order superseding the Board is passed under Sub-section (2) of Section 74, the Government shall give the Board an opportunity of being heard and shall specify in the order the reasons for making the order and the date from which the supersession shall take effect.

(2)

The order of supersession shall specify the period for which the Board shall be superseded and such order shall, be published in the Orissa Gazette. Copies of the order of supersession shall be served on the Chairman and the members of the Board.

(3)

Upon an order of supersession being made the Chairman and all other members of the Board shall as from the date

specified in the order, vacate their offices.

19.

Reconstitution of the Board.

(1)

The Board shall be reconstituted immediately on the expiry of the period of supersession.

(2)

At the time of reconstituting the Board after its supersession, the Government may re-appoint on the Board any member or members of the Board which was superseded by it.

Form I

[See Rule 8]

Housing programme for the year.....

A. Works to be taken up

Serial No.

Description of work

Total estimated cost

Remarks

1

2

3

4

B. Cash, loan and subsidy to be given

Serial No.

Name of the Scheme

Amount required for incomplete works

Amount required for fresh cases

Total amount required

Remarks

Loan

Subsidy

Loan

Subsidy

Loan

Subsidy

1

2

3

4

5

6

7

8

9

Form II

[See Rule 8]

Statement A - Receipt of expenditure

Actuals for the previous year

Estimates for.....

Revenue estimate for the current year

Budget estimate for.....

Remarks

1

2

3

4

5

Rs.

Rs.

Receipt

A. General receipts

B. Sale proceeds of land/buildings

C. Debts - Deposits, Advances

D. Total Receipts

Opening Balance

Grand Total

Expenditure

Administration expenditure

Expenditure on repairs, Maintenance, etc.

Capital expenditure

Debts-Deposits, Advances

Total expenditure

Closing balance

Grand Total

Budget Estimate For The Year.....

Statement B - Receipts

Head of Account

Budget estimates

Revised estimates

Budget estimates

Actuals for.....

1

2

3

4

5

A. General Receipts

1. Rent on

buildings under different housing schemes (a)

(a)

(b)

(c)

(d)

etc.

2.

Miscellaneous receipts

3. Subsidy

under different housing scheme-

(a)

(b)

(c)

(d)

etc.

4. Grants

from Government-

(a) Towards

Administration charges

(b) Towards

extra cost on State Projects

5. Grants,

donations and gifts from Government and other sources

6. Interest

on investments

7.

Supervision charges

Total - A

B. Capital receipts-

(a) T and P

receipts

(b) Sale

proceeds of land and buildings

Total-B

C. Debts, Deposits, Advances-

1. Deposits

2. Parties'

contribution towards construction of buildings under different
housing schemes-

(a)

(b)

(c)

(d)

etc.

3. Loans from

Government for different Housing schemes-

(a)

(b)

(c)

(d)

etc.

4. Loans from

other sources

5. Recoveries

towards loan granted under different housing schemes-

(a) (i)

Principal

(ii) Interest

(b) (i)

Principal

(ii) Interest

(c) (i)

Principal

(ii) Interest

(d) (i)

Principal

(ii) Interest

etc.

6. Suspence

Accounts-

(a) Stock

(b) Advances

(c) Purchases

(d) T and P

(Tractors and Trailers)

7.

Withdrawals from investment

Total-C

Total-Receipts

Budget Estimate

for the Year.....

Statement C -

Expenditure

A. Administrative expenditure-

1. (a) Salary

of officers

(b) Pay of

establishment

(c)

Allowances and honoraria allowance to Chairman

2. Law

charges-

(a)

Remuneration to Legal Adviser

(b) Other Law

charges

3.

Contingencies-

(i) Office

contingency

(ii)

Stationery and printing

(iii) Postage

(iv) Rent on

buildings

(v)

Furniture, etc.

(vi)

Maintenance of van

(vii)

Exhibition

(viii)

Miscellaneous and unforeseen

4.

Reimbursement of medical charges

5. Travelling

allowance

6. Audit

charges

7. Tools and
plant

Total-A-Administrative
expenditure

B. Expenditure on repairs,
maintenance, etc.-

(a) Ordinary
repairs

(b) Special
repairs

(c) Rates and
taxes

Total-B-Revenue
expenditure

C. Capital expenditure-

1. Capital

Expenditure under different housing schemes-

(a)

(b)

(c)

(d)

etc.

2. Tools and
plants

Total-C-Capital
expenditure

D. Debts, deposits, advances-

1. Loans and

advances to individuals and institutions under different housing
schemes-

(a)

(b)

(c)

(d)

etc.

2. Repayment

of loans drawn from Government under different housing schemes-

(a) (i)

Principal

(ii) Interest

(b) (i)

Principal

(ii) Interest

(c) (i)

Principal

(ii) Interest

(d) (i)

Principal

(ii) Interest

etc.

3. Refund of
deposit

4.

Investments

5. Suspense
accounts-

(a) Stock

(b) Advances

(c) Purchases

(d) Tools and

plant (Tractors and Trailors)

Net transactions including bicycle
advance as follows :

Advances

Granted

Recoveries

Total-D-Debts,

deposits, advances

Total-Expenditure

Form III-A

[See Rule 8]

of staff as on.....

Serial No.

Designation

Scale of pay

No. of posts

Remarks

1

2

3

4

5

Form III-B

[See Rule 8]

of posts proposed to be created during the year, 20.....

Serial No.

Designation

Scale of pay

No. of posts

Whether budget provision has been made or not

Need for the post/posts

Remarks

1

2

3

4

5

6

7

N.B.: If no provision is made it should be explained in the remarks column how the cost is proposed to be met.

Form IV

[See Rule 9]

Betterment charges

To

Shri/Shrimati/Kumari.....son/daughter or wife of.....residing at village.....P.S.....P.O.....District.....

Whereas the Orissa State Housing Board has made a Housing Scheme known as.....Scheme in the area.....and, whereas in the opinion of the Board the value of the land bearing Khata No.....Plot No.....Village.....P. S.....District.....of which you are believed to be the owner or in which you are believed to have an interest, has increased by the execution of the Scheme, the Board proposes to levy betterment charges of Rs.....payable under Section 34 of the Orissa Housing Board Act, 1968, being one-half of the said increase in the value of the land aforesaid by virtue of the said land being comprised in adjacent to the area comprised in the said Housing Scheme, notified under Section 21 of the Orissa State Housing Board Act, 1968, under Notification No.....dated.....published in the Orissa State Government Gazette, Part.....dated the....

Now, therefore, in pursuance of the provisions of Sub-section (1) of Section 35 of the said Act, you are hereby called upon to appear in person or through a duly authorised agent on the ' . day of20 at.....a. m./p. m. before the [.....]

[Designation of Officer.]

Board at [.....]

[Specify the office address.]

to show cause why betterment charges as aforesaid and computed as set out in the Annexure hereto should not be assessed and levied ;

And notice is hereby given that if you fail to appear before the.....Board at the aforesaid time and place the Board shall proceed to assess the amount of betterment charges as proposed in your absence.

Notice is also hereby given that if you communicate your acceptance of the amount of the betterment charges as aforesaid to.....Board at the aforesaid time and place, the assessment shall be final ; but if you communicate in writing your non-acceptance of the assessment of the betterment charges as aforesaid at the aforesaid time and place, the matter shall be referred to the Tribunal.

Dated the.....20.....

Chairman

Orissa State Housing Board

Annexure

Calculation of betterment charges proposed to be levied : Half the amount of increase in the value of the land on the date of completion of the execution of the scheme estimated as if the land in question were clear of the building less the value of the said land prior to the date of the execution of the scheme estimated in the like manner vide Section 34 (2) of the Orissa State Housing Board Act, 1968. Value of the land bearing Khata NoPlot No.....of village.....P. O P. S.....District.....measuring.....*acres/square yards estimated as if the same were clear of buildings on the date of completion of the execution of the Scheme, viz.....20.... at Rs.per acre/square yards.

Value of the land estimated as if the same were clear of buildings on the date prior to the execution of the scheme, viz.....20.at.Rs per acre/square yards.....Rs.Increase in the value of the said land Rs.....minus Rs.....Rs.....

Betterment charges being one-half of the increase in value : Rs.....

Form V

[See Rule 12]

Toresiding at.P.O.....P.S.....District.....

Whereas I, the undersigned, am satisfied-

(a)

** (i) That you have not paid rents lawfully due from you for more than two months in respect of the premises described in the Schedule appended hereto :

** (ii) That you have sub-let, without the permission of the Board, the whole or any part of the premises described in the Schedule appended hereto ;

** (iii) That you have made or are making, material additions to or alterations in, such premises without the previous written permission of the Board ; or

(iv) That you have

* and thereby have acted in contravention of the terms under which you were authorised to occupy and use the premises described in the Schedule appended hereto;

(b)

That you are in unauthorised occupation of the premises described in the Schedule appended hereto;

Now, therefore, in exercise of the powers conferred on me under Subsection (1) of Section 45 of the Orissa Housing Board Act, 1968.

I order you* (as well aswho is/are in occupation of the whole/a part of the said premises) to vacate the said premises within one month from the date of the service of this notice.

Schedule 3

Date

Signature of the Competent Authority

*. Strike out what is not necessary.

**. Any of the alternative which is relevant to be specified.

***. Specific contravention to be mentioned.

Form VI

[See Rule 12]

To

.....residing at P.O.....P.S.....District.

Whereas you are in occupation of premises described in the Schedule hereto appended;

And whereas a sum of Rs being the arrears of rent from toin respect of the said premises is due and payable by you to the Board;

Now, therefore, in exercise of the powers conferred on me under Subsection (1) of Section 46 of the Orissa Housing Board Act, 1968, I hereby order you to pay the said sum within.....days after expiry of thirty days from the date of service of this notice.

Schedule 4

Date.....

Signature of the Competent Authority

Form VII

[See Rule 12]

To

.....residing at.....P.O.....P. S.....District.....

Whereas you are in unauthorised occupation of the Board premises described in the Schedule appended hereto;

And whereas in exercise of the powers conferred upon me by Subsection (2) of Section 46 of the Orissa Housing Board Act, 1968, I have assessed Rs..... as damages payable by you on and the use and occupation of the said premises, I hereby order you to pay the said amount of damages days after expiry of thirty days from the date of service of this notice.

Schedule 5

Date.....

Signature of the Competent Authority

Form VIII

[See Rule 15]

Form of application

Application for debentures per cent year 20.....20.....

The Chairman, Orissa State Housing Board, Bhubaneswar.

Dear Sir,

Issue of 20..... 20.....Years debentures.....Interest at.....per cent Issue price.....Rs.....

I/We hereby apply for debentures of the face value of Rs.....of the above issue. Debentures of the denominations noted below may kindly be issued for the amount :

* Omit if not applicable.

Denomination

No. of bonds

Amount

Rs.

100

500

1,000

5,000

10,000

25,000

50,000

1,00,000

I/We send herewith/have paid a deposit of Rs.....(Rupees.....) only through.....for Wit debentures applied for.

I/We undertake to accept the same or debenture for any lesser amount. The interest may be made payable at-

1.

.....

2.

.....

3. The Chairman's Office, Bhubaneswar (by pressing the bonds on the due dates).

Note-Strike the portions not required.

Name/Names in full.....

In Block letters.....

Address in full.....

Yours faithfully

Signature

Note - (1) The name in which two bonds are required should be mentioned in block letters. If the bonds are to be held in joint names, the order in that the names are to written should be given. In the case of an institution the bonds will be issued in the name of the institution itself.

(2)

Specific mention should be made of the Bank or office and the place where the interest on debentures is to be drawn.

Form IX

[See Rule 17]

Half-yearly Progress Report of works under execution for the half-year ended with dated the 30th September, 20 to 31st March, 20.....

Sl. No.

Name of the Scheme

Estimated cost

Expenditure incurred up to the beginning of the half-year

Expenditure incurred during the half-year

Progressive total of Columns 4 and 5

Number of houses or tenements built

Number of plots developed

Remarks

1

2

3

4

5

6

7

8

9

Rs.

Rs.

Rs.

Rs.

Form X

[See Rule 17]

Half-yearly Progress Report of collection of rents and instalments for the half-year ended with dated the 30th September, 20 to 31st March, 20.....

Sl. No.

Name of the Scheme

Arrear demand as on the first of the half-year

Current demand

Total demand

Collection

Balance

Rents

Rents

Instalments

Rents

Instalments

Rents

Instalments

Rents

Instalments

Rents

Instalment

1

2

3

4

5

6

7

8

9

10

11

12

13

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Translation